

Parishudh Machiens Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 September 2022 · Writ - C No. 49642 of 2009 · **Writ petition dismissed as infructuous; interim order vacated.**

HEADNOTE

Challenge to an additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005. After listing with similar 2009 writs and an interim restraint on the demand, the petitioner stated the writ had become infructuous. Dismissed as infructuous; interim vacated. Clause 4.20 was not construed.

FACTUAL SUMMARY

Parishudh Machiens Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand notice dated 11 August 2009 seeking additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005. Relying on an interim order in a similar writ (Vehlana Steels, WP 30582 of 2009), the High Court listed the matter with other 2009 additional-security cases and, on 16 September 2009, restrained the demand until further orders. The petition later sat as a bunch matter; in 2022 counsel stated it had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging an additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as having become infructuous, and the interim restraint on that demand was vacated, without any determination of whether clause 4.20 authorised the demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD BE DEMANDED UNDER CLAUSE 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition dismissed as infructuous without deciding the demand. ¶ 1